IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

CA(CAA)NO.12/BB/18
Under Section 230 to 232 of Companies Act, 2013

IN THE MATTER OF SCHEME OF AMALGAMATION
IN THE MATTER OF
INTEL MOBILE COMMUNICATIONS INDIA PRIVATE LIMITED
WITH
INTEL TECHNOLOGY INDIA PRIVATE LIMITED

Order delivered on: 13th April, 2018

Coram: Hon'ble Shri Ratakonda Murali, Member (Judicial)
Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

For the Petitioner (s): Mr. C V Madhusudhanan, Practising Company Secretary
Indus Chambers No. 101, Govt Arts College Road
Coimbatore - 641018

Per: Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

Heard on: 20.03.2018, 02.04.2018.

INTEL TECHNOLOGY INDIA PRIVATE LIMITED
23-56P, Devarabeesanahalli, Varthur Hobli
Outer Ring Road, Bengaluru-560103

ORDER

This Application is filed on behalf of the Applicant Company under Section 230 to 232 of Companies Act, 2013 read with Rule 3 Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, praying to dispense with convening of meetings of Equity Shareholders and Unsecured Creditors of the Applicant Company/Transferee Company for considering the scheme of Amalgamation, where under Intel Mobile Communications India Private Limited (Transferor Company) is proposed to be merged with Intel Technology India Private Limited (Applicant/Transferee Company). The Scheme of Amalgamation is shown as **Annexure-B**.

The averments made in the Company Application are briefly described hereunder:-

The Applicant/Transferee Company seeks an order to dispense with convening of meeting of Equity Shareholders and Unsecured Creditors of the Applicant

Company/Transferee Company for considering the scheme of Amalgamation where under Intel Mobile Communications India Private Limited (Transferor Company) is proposed to be merged with Intel Technology India Private Limited (Applicant/Transferee Company) in terms of Scheme of Amalgamation shown as **Annexure-B**.

Application is filed on behalf of the applicant company alleging that the Applicant Company/Transferee Company was incorporated on 3rd January, 1997 under the name and style of Intel Technology India Private Limited vide **CIN No. U85110KA1997PTC021606**. The registered office of the Applicant Company/Transferee Company is situated at 23-56P, Devarabeesanahalli, Varthur Hobli, Outer Ring Road, Bengaluru-560103.

The main objects of the Applicant Company/Transferee Company is to manufacture, produce, sell, distribute, design, develop, assemble, exchange, convert, service or otherwise deal or handle, all types of software systems, communication systems, very large scale standard and semi custom integrated circuits and services and also to provide consultancy and advisory services in relation to any of the aforesaid activities. The copy of Memorandum and Articles of Association of the Transferee Company has been filed by way of **memo dated March 15, 2018**.

The latest authorised share capital of the Applicant Company/Transferee Company is Rs. 991,700,000/- divided into 6,161,100 Equity Shares of Rs. 10/- each, 92,870,589 Preference Shares of Rs. 10/- each and 138,111 Unclassified Shares of Rs. 10/- each. The issued, subscribed and paid-up capital of the Transferee Company is Rs. 61,610,520/- divided into 6,161,052 Equity Shares of Rs.10/- each. The Audited balance sheet of the Applicant/Transferee Company as on 31st March, 2017 has been filed by way of **memo dated March 15, 2018**.

It is further stated that, the Board of Directors of the Transferee Company have approved and adopted a Scheme of Amalgamation at their meeting held on 15th February, 2018 by virtue of which Intel Mobile Communications India Private Limited (Transferor Company) is proposed to be merged with Intel Technology India Private Limited (Applicant/Transferee Company) subject to confirmation. Copy of the Board Resolution of Transferee Company dated on 15th February, 2018 approving and adopting the Scheme of Amalgamation is shown as **Annexure-A**.

It is further averred in the scheme that the Board of Directors of the Transferor Company and Transferee Company are of the opinion that the amalgamation would result in following benefits:

1. The proposed scheme would ensure greater integration, consolidation of business operations/infrastructure and greater financial strength and flexibility for the Transferee Company.
2. The proposed scheme would ensure greater efficiency in cash management of the Transferee Company, and unfettered access to cash flow generated by the combined business which can be deployed more efficiently to fund organic and inorganic growth opportunities, improved organizational capability and leadership arising from the pooling of human capital and sharing of resources that has diverse skill, talent and vast experience.
3. Pursuant to the scheme, cost savings are expected to flow from more focussed operational efforts, rationalization, standardization and simplification of business processes, greater synergy between the products and services of the two companies and the elimination of duplication, and rationalization of administrative and operating expenses.
4. The proposed scheme would enable achieving economies of scale.

It is further stated that MSSV & Co., Chartered Accountants after verification of the books of accounts, other records and documents of the Applicant Company/ Transferee Company has certified that there are 2 Equity Shareholders in the Applicant Company/ Transferee Company as on 07th February, 2018. The Certificate of Chartered Accountant certifying the list of Shareholders is shown as **Annexure-E.**

It is further stated in relation to the Applicant/Transferee Company, the value of unsecured creditors is Rs. 17,340,313,428/- and that as on 7th February, 2018 there are 153 unsecured creditors in the Applicant Company/ Transferee Company as certified by MSSV & Co., Chartered Accountants **shown as Annexure-I.**

It is further stated that there are no Secured Creditors in the Applicant Company/ Transferee Company as on 7th February, 2018 as certified by MSSV & Co., Chartered Accountants **shown as Annexure-I.**

We have seen the consent affidavits filed by Two Equity shareholders of Applicant Company/Transferee Company i.e., (i) Intel Services LLC, United States of America, holding

6,161,050 equity shares, constituting 99.99% of the paid-up capital, and (ii) Intel Technology Finance Limited, United States of America holding 2 equity shares, constituting 0.01% of the paid-up capital. The consent affidavit on behalf of Intel Services, LLC, has been provided by Mr. Ronald Dean Dickel, he has been authorised by virtue of a Resolution of Intel Services, LLC, dated February 16, 2018 to provide the consent affidavit. The consent affidavit on behalf of Intel Technology Finance Limited has been provided by Ms. Tiffany Doon Silva, Director of Intel Technology Finance Limited, she has been authorised by virtue of a Resolution of Intel Technology Finance Limited dated February 16, 2018 to provide the consent affidavit. The consent affidavits of the equity shareholders are shown as **Annexure-F**.

We have seen the consent affidavits filed by Four Unsecured Creditors of Applicant Company/Transferee Company i.e., (i) Intel Corporation, United States of America for an amount of Rs. 1,830,761,143/-, (ii) Intel Services LLC, United States of America for an amount of Rs. 11,637,360,705/-, (iii) SMSilicon India Private Limited, India for an amount of Rs. 440,000,000/-and (iv) Intel Mobile Communications India Private Limited, India for an amount of Rs. 2,131,522,289/- collectively representing **92.50%** of the total unsecured loan. The consent affidavit on behalf of Intel Corporation has been provided by Ms. Tiffany Doon Silva, she has been authorised by virtue of a power of attorney executed by the Vice President of Intel Corporation to provide the consent affidavit. The consent affidavit on behalf of Intel Services, LLC, has been provided by Mr. Ronald Dean Dickel, he has been authorised by virtue of a Resolution of Intel Services, LLC, dated February 16, 2018 to provide the consent affidavit. The consent affidavit on behalf of SMSilicon India Private Limited, has been provided by Ms. Priya Anne Manjooran, she has been authorised by virtue of a Board Resolution of SMSilicon India Private Limited, dated February 26, 2018 to provide the consent affidavit. The consent affidavit on behalf of Intel Mobile Communications India Private Limited, has been provided by Mr. Anil Sama, he has been authorised by virtue of a Board Resolution of Intel Mobile Communications India Private Limited, dated February 15, 2018 to provide the consent affidavit. The consent affidavits of the unsecured creditors are shown as **Annexure-G**.

The Applicant Company is seeking an order to dispense with convening of meetings of Equity Shareholders, and Unsecured Creditors on the ground that, there are 2 Equity shareholders and 153 Unsecured Creditors in the Applicant Company/Transferee Company and that all the Equity shareholders and **92.50%** of the Unsecured Creditors of Applicant

Company/Transferee Company have given their consent by way of affidavits for the proposed scheme of amalgamation.

The Applicant Company is seeking an order to dispense with the convening of meetings of Equity Shareholders, Unsecured Creditors of the Applicant Company for approving the scheme of amalgamation of Intel Mobile Communications India Private Limited (Transferor Company) with Intel Technology India Private Limited (Applicant/Transferee Company) shown as **Annexure-B**.

In the result, the application is allowed and holding of meeting of the Equity Shareholders and Unsecured Creditors of Applicant Company/Transferee Company is dispensed with. In any eventuality when the Applicant Company approaches this Tribunal for seeking approval of the scheme it would be open for any person who is interested in the Scheme of Amalgamation to put forth their contentions before the Tribunal.

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

(RATAKONDA MURALI)
MEMBER, JUDICIAL

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NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH
COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 13.04.2018.

PRESENT: 1. Hon'ble Member(J) **Shri Ratakonda Murali**
2.Hon'ble Member (T) **Dr. Ashok Kumar Mishra**

CP/CA No	Purpose	Section	Name of Petitioner	Petitioner Advocate	Name of Respondent	Respondent Advocate
CA(CAA)No. 12/BB/2018	For considerations	230-232	M/s Intel Technology India Pvt Ltd	KSR & Co CS LLP		

SL. NO.	NAME (IN CAPITAL) & PHONE NUMBER	REPRESENTATION TO WHOM	SIGNATURE
1	C.V. MADHUSUDHANAN PCS 9442962014	for Applicant	

ORDER

Order will be passed vide separate Order

MEMBER(T) **MEMBER(J)**